

(Settlement Agreement, ¶ 5.1.)

The scope of the release appears to be appropriately limited to the PAGA claims asserted in this action, and those for which the LWDA was provided notice in plaintiff's October 25, 2022 written notice to the LWDA and defendants. (Hawkins Decl., Ex. 2.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** July 27, 2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: **Reeves v. Volkswagen Group of America, Inc., et al.**
Superior Court Case No. 25CECG00128

Hearing Date: July 28, 2026 (Dept. 403)

Motion: By Plaintiff for an Award of Attorney Fees

Tentative Ruling:

To grant the motion for an award of attorney fees in the reduced amount of \$10,697.00 in favor of plaintiff Brian Reeves. Payment of attorney's fees shall be made by defendants to Quill & Arrow, LLP within 30 days of the clerk's service of this minute order.

Explanation:

Plaintiff Brian Reeves ("Plaintiff") seeks an award of attorney fees under Civil Code section 1794, subdivision (d). The plaintiff's complaint alleges violations of the Song-Beverly Warranty Act. Plaintiff submits an executed Offer to Compromise pursuant to Code of Civil Procedure section 998 authorizing plaintiff to seek fees and costs from defendant Volkswagen Group of America, Inc. and CJ's Road to Lemans Corp. ("Defendant") by noticed motion. The court finds that plaintiff sufficiently states a basis upon which to seek an award of fees and costs. Plaintiff suggests that the settlement was for full restitution of the vehicle by way of repurchase.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) A prevailing buyer in an action under the Song-Beverly Act "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

Civil Code section 1794 "requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of 'showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.' [Citations.]" (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.) Plaintiff as the moving party bears the burden to prove the reasonableness of the number of hours devoted to this action. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1325.)

A trial court may not rubber stamp a request for attorney fees, and must determine the number of hours *reasonably* expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271 [emphasis in original].) A court assessing attorney's fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney . . . involved in the presentation of the case.' (*Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48.) Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

Counsel for plaintiff seeks to set the lodestar at \$11,931.50, inclusive of fees sought in connection with the drafting of the reply and hearing for the motion at bench. Counsel submits a total of 27.9 hours of billed time across five timekeepers. Counsel's practice is largely in consumer protection claims, such as the present action. As to the attorneys, counsel submits hourly rates ranging from \$395 per hour for an associate attorney to \$495 for a senior associate attorney. Some of these rates are high for the Fresno area.

Reasonable hourly compensation is the "hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type" (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133.) Where a party is seeking out-of-town rates, he or she is required to make a "sufficient showing...that hiring local counsel was impractical." (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1244.)

Plaintiff has made no showing that local counsel practicing "Lemon Law" and Song-Beverly consumer litigation are not available. As a result, the court intends to award fees based on local rates.

Having reviewed the qualifications of each of the five timekeepers the court finds the reasonable value of services as follows:

For Derek Chipman, an associate attorney admitted to the California Bar in 2019, a rate of \$425 per hour.

For Donald Mahnke, a senior associate attorney admitted to the California Bar in 2021, a rate of \$425 per hour as requested.

For Joshua Kohanoff, an attorney admitted to the California Bar in 2022, a rate of \$425 per hour, as requested.

For Ellen Zakharian, an attorney admitted to the California Bar in 2024, a rate of \$325 per hour.

For Stephanie Hovhannisyan, an attorney admitted to the California Bar in 2025, a rate of \$300 per hour.

Defendant asserts that excessive time was spent on this case, primarily with respect to the preparation of the discovery, deposition, and the present motion. Also, Defendant argues that the fee motion billing is too high because it is substantially similar to Plaintiff's attorney's fee motions in other cases. It's then argued that billing more than

9 hours for drafting a reply to Defendant's opposition and attending a hearing is excessive. Defendant also objects to the meet and confer letters for being excessive, the billing for communication with the client as excessive and improper, and preparing a costs memorandum as excessive and improper.

On reply, Plaintiff's counsel declared to have spent 2.8 hours drafting the reply and anticipates 2 hours to attend a hearing instead of 9 hours for both, thus conceding a reduction of billable hours for these two items. These reduced hours are reasonable. In regard to the billing for the fee motion, Plaintiff's counsel claims to have spent 5.9 hours drafting the instant fee motion, which by counsel's own admission, is heavily drawn from a standard template. The court has extensive experience with assessing fee motions in lemon law matters, and finds 5.9 hours to be excessive. The possible lack of experience of the drafting attorney may not justify excessive billing. The other challenged time entries, which consist of a discovery motion, a meet and confer letter, four calls to the client, and drafting a memorandum of costs each range from 6 minutes to 36 minutes, none of which are excessive. These tasks are proper to be billed as compensable attorney's fees. Following a careful review of the entries submitted, the court finds that the remaining entries are reasonable for the tasks billed.

With the reductions in hourly rates and time entries, the lodestar is set at \$9,910.00.

Plaintiff seeks the imposition of a multiplier of 1.25. As stated by the California Supreme Court regarding lodestar multipliers, sometimes referred to as fee enhancements:

We emphasize that when determining the appropriate enhancement, a trial court should not consider these factors to the extent they are already encompassed within the lodestar. The factor of extraordinary skill, in particular, appears susceptible to improper double counting; for the most part, the difficulty of a legal question and the quality of representation are already encompassed in the lodestar. A more difficult legal question typically requires more attorney hours, and a more skillful and experienced attorney will command a higher hourly rate. (See *Margolin v. Regional Planning Com.* (1982) 134 Cal.App.3d 999, 1004, 185 Cal.Rptr. 145.) Indeed, the " 'reasonable hourly rate [used to calculate the lodestar] is the product of a multiplicity of factors ... the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case.' " (*Ibid.*) Thus, a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable. Nor should a fee enhancement be imposed for the purpose of punishing the losing party.

(*Ketchum v. Moses, supra*, 24 Cal.4th at pp. 1138-1139 [emphasis in original].)

Once a lodestar figure is determined, on motion for attorney fees under Song-Beverly Consumer Warranty Act (Song-Beverly), the figure may be augmented or

diminished by taking various relevant factors into account, including (1) the novelty and difficulty of questions involved and the skill displayed in presenting them, (2) the extent to which the nature of the litigation precluded other employment by the attorneys, (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award, (4) the quality of the representation, and (5) the results obtained. (Civ. Code, § 1790 *et seq.*; *Pulliam v. HNL Automotive Inc.* (2021) 60 Cal.App.5th 396, 406; *Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 556.)

Here, Plaintiff submits that counsel took the matter on contingency, and obtained an excellent result. The contingent risk taken by counsel, and the settlement amounting to approximately two times the alleged value of the vehicle to be above average to the statutory relief afforded in these actions, supports granting fee enhancement. Though plaintiff suggests undue delay, the timeline supports a finding that all parties treated the matter as proceeding to trial. The steady nature of the discovery conducted and law and motion practice suggests as much. This would not constitute a delay, much less undue delay. Moreover, plaintiff does not suggest that the delay precluded other employment. Over the roughly 18 months between the first engagement with the client to the date of settlement, the firm spent, on average, 1.5 hours per month on the matter. Such a time commitment does not support the conclusion that this action was so involved as to preclude commitment to other work. This case also did not appear to present novel or complex issues that would support a substantial fee enhancement. The court applies a reduced multiplier of 1.1 to the lodestar.

The court therefore grants attorney's fees for Plaintiff in the reduced amount of \$10,697.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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